

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR MARCH 5, 2026
DEPARTMENT 38
JUDICIAL OFFICER: BARBARA C. HINTON

PROBATE EXAMINER NOTES-SUBJECT TO REVISION AFTER REVIEW BY
THE JUDGE

**Unless the Court directs otherwise, appearances by counsel and parties in
Department 38 may be made as follows:**

- **In Person**
- **Remotely through Zoom Videoconferencing**

Zoom videoconferencing for Department 38, Judge Hinton:

[Court Calendars | Superior Court of California | County of Contra Costa](#)

IF YOU HAVE MATTERS IN BOTH
DEPARTMENT 30 AND DEPARTMENT 38,
PLEASE NOTIFY THE BAILIFFS
THE MORNING OF YOUR APPEARANCE.

THANK YOU.

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
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| 1.
9:00 AM | MSP17-00389 ESTATE OF ANNE S FLEMING
HEARING IN RE: STATUS REPORT & REQUEST FOR APPOINTMENT OF SUCCESSOR PERSONAL REPRESENTATIVE FILED ON 7-3-25 BY JOHN FLEMING

Need:
<ol style="list-style-type: none">1. Appearances2. Verified declaration with the names and addresses of all persons entitled to notice3. Proof of mailing to anyone added by verified declaration, not already served4. Verified declaration by petitioner to include Petition for Probate Form DE-111 filed as a supplement to petition5. Proposed Order
Notes:
<ol style="list-style-type: none">a. Letters Testamentary issued to John J. Fleming 06/01/2017.b. Withdrawal of Charles A. Triay's Objections filed 1-28-2026. |
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2. **MSP21-00300 MATTER OF THE O.N. & T.M. GALLANES TRUST**
9:00 AM HEARING IN RE: STATUS OF SETTLEMENT RE: PTN TO SUSPEND TRUSTEE FILED ON 03/16/21 BY
STEVEN G. COUNELIS

Need appearances to report status of settlement

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
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3A.

9:00 AM

MSP21-01476 ESTATE OF JANN D. JANSEN JAMES

HEARING IN RE: FOR FINAL DISTRIBUTION, ADMINISTRATOR'S REPORT, REQUEST FOR ATTORNEY'S FEES, ADMINISTRATOR'S FEES BASED ON WAIVER OF ACCOUNTING FILED ON 06/26/23 BY WARNER JANSEN

Need:

1. Appearances to report status, including 12-18-2025 order to meet and confer
2. Verified declaration by petitioner to clarify whether Ernie Mingiana listed at ¶ 18 is the same person as Ernesto Mingiana listed at ¶ 15.
3. Proof of mailing Inventory and Appraisal to atty. Jeffrey T. Vanderveen, Esq. PrC § 8803
4. Verified declaration by petitioner to include date Creditor's Claim was filed by Doris Slater. PrC § 10900; CRC § 7.403
5. Verified declaration by petitioner to include date and amount of Creditor's Claim filed by Donice Smith
6. Verified declaration by petitioner to state whether notice was given, or needed, to the Director of the California Victim Compensation Board, i.e., does petitioner have any reason to believe any heir is confined, or has previously been confined, in any prison or other correctional facility. PrC §§ 216, 9202(b)
7. Compliance with CRC 7.250 regarding any acts taken under IAEA w/notice of proposed action. (Specifics needed or statement that no action was taken)
8. Authority for preliminary distribution of \$136,912.57 to Nathan James as indicated at ¶ 19
9. Verified declaration by petitioner to show calculation of statutory fee base as required by CRC § 7.705. Specifically, must clarify deduction of preliminary distribution at ¶ 20.
10. Verified declaration by petitioner to specify whether all charges for legal advertising, bond premiums, probate referee's services and costs of administration have been paid. LR 7.317
11. Declaration to state need for reserve in excess of \$2,000.00.
12. Proposed Order

Notes:

- a. Objection filed by Donice Smith 11/08/23.
- b. Per Order filed 04/05/2024, this petition is treated as a status report.

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3B.

9:00 AM

MSP21-01476 ESTATE OF JANN D. JANSEN JAMES

HEARING IN RE: PETITION FOR PROBATE OF LOST WILL AND FOR LETTERS OF ADMINISTRATION WITH
WILL ANNEXED W/ IAEA FILED 6/12/2024 BY DONICE SMITH

Need:

1. Appearances to report status, including 12-18-2025 order to meet and confer
2. Proof of mailing Notice of Petition to Administer Estate and copy of petition to all heirs and beneficiaries. PrC § 8110; LR 7.151(e)
3. Verified declaration by petitioner to complete petition item # 3.h. (whether petitioner is a resident of California and United States)
4. Verified declaration by petitioner to complete petition item #3.f. (date of will)
5. Verified declaration by petitioner to include Attachment 3.f.(2) (copy of will), not attached as indicated. PrC § 8002
6. Lodge Original Will (w/legal process). PrC § 8200
7. Evidence to overcome presumption of revocation by the fact that the originals cannot be located. PrC § 6124
8. Proof of mailing notice that will is lost. PrC § 1202
9. Proof of Subscribing Witness Form DE-131. PrC § 8220.
10. Proposed Order for Probate Form DE-140 with copy of Will attached, if lost will is to be admitted

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3C.

9:00 AM

MSP21-01476 ESTATE OF JANN D. JANSEN JAMES

HEARING IN RE: AMENDED PETITION FOR PROBATE FILED ON 12/2/21 BY WARNER JENSON (AS REVIVED BY ORDER FILED 4/05/24)

Need appearances to report status, including 12-18-2025 order to meet and confer

Note: Order Re: Motion to Vacate Orders filed 4-5-2024. Order vacated appointment of Warner Jensen and revoked letters issued.

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| 6.
9:00 AM | P23-00787 ESTATE OF: HOUSTON BROWN
HEARING IN RE: FIRST AND FINAL REPORT OF EXECUTOR AND PETITION FOR ALLOWANCE OF STATUTORY COMPENSATION TO EXECUTOR AND ATTORNEYS AND FOR FINAL DISTRIBUTION FILED BY ROMELLO BERNSTINE ON 10/8/2025

Need: <ol style="list-style-type: none">1. Verified declaration by petitioner to include trust beneficiaries as persons entitled to receive notice. LR 7.1122. Compliance with CRC 7.250 regarding any acts taken under IAEA w/notice of proposed action. (Specifics needed including date action was taken and date notice was given)3. Identification of and waivers of accounting from presumptive contingent remainder beneficiaries of the trust. The Trustee has a fiduciary duty to protect their interests, and cannot use his/her fiduciary position to relieve her/himself of the obligation to provide an accounting in this proceeding. Trustee and personal representative are the same person.4. Revised, proposed Order if needed in resolution of above |
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7. **P24-00486** **ESTATE OF: JOHN FLEMING**
9:00 AM HEARING IN RE: FIRST AND FINAL REPORT OF ADMINISTRATOR ON WAIVER OF ACCOUNT FILED BY
MICHAEL LEAL ON 05/22/2025

Drop.

Note: Order Approving First and Final Report of Administrator filed 1-28-2026.

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8A.

P24-00544

ESTATE OF: MARY MCMILLIAN

9:00 AM

HEARING IN RE: PETITION FOR LETTERS OF ADMINISTRATION W/IAEA FILED ON 3/29/2024 BY
WARREN RED COOK

Need appearances to report status

Notes:

- a. Per 8-27-2024 minute order, Lana Avaloz appeared in objection and court ordered written objections to be filed and served by 12-13-2024 or objections will be deemed waived.
- b. Notice of Objection to Petition for Administration filed by Lana Avaloz 12-10-2024.

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8B.

9:00 AM

P24-00544

ESTATE OF: MARY MCMILLIAN

HEARING IN RE: PETITION FOR LETTERS OF ADMINISTRATION WITH IAEA FILED BY LANA L AVALOZ ON
02/07/2025

Petitioner still must do the following:

1. Appear at the hearing
2. Submit Order for Probate Form DE-140

Notes: If granted, bond will be fixed at \$541,000.00.

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10. 9:00 AM	P24-00770 ESTATE OF JOSEPH ALBERT LORANGER HEARING IN RE: FURTHER CASE MANAGEMENT CONFERENCE PER AMENDED STIP AND ORDER FILED 12/17/25; (AMENDED STIP AND ORDER RE VACATING TRIAL PREFERENCE ORDERS; RESETTING HEARINGS, AND REFERREAL TO MEDIATION UNDER BRESLIN VS BRESLIN) -- See also Line # 11 -- Need appearances to report status, pursuant to Amended Stipulation and Order filed 12-17-2025
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11A. 9:00 AM	P24-01755 IN RE: J. ALBERT LORANGER II HEARING IN RE: STIPULATION AND ORDER RE: VACATING TRIAL-PREFERENCE ORDERS, RESETTling HEARINGS, AND REFERRAL TO MEDIATION UNDER BRESLIN V. BRESLIN Need appearances to report status, including mediation	-- See also Line # 10 --
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11B.

9:00 AM

P24-01755

IN RE: J. ALBERT LORANGER II

HEARING IN RE: PETITION TO COMPEL DURABLE POWER OF ATTORNEY ACCOUNTING BY DIANE SHELBY FILED BY ARIANE DART AND J. ALBERT LORANGER, III ON 10/2/24

Need appearances to report status, including mediation

Notes:

1. Per 4-17-2025 minute order, court ordered responses to be filed by 5-9-2025.
2. Objections filed by Diane Shelby 10-8-2025 and 10-9-2025.

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13.

9:00 AM

P25-01551

ESTATE OF: STANLEY BOERSMA

HEARING IN RE: SPOUSAL PROPERTY PETITION FILED ON 9/3/2025 BY GEURTJE BOERSMA

Need:

1. Verified declaration from petitioner to confirm the correct address for Edward Boersma. The address on the Notice of Hearing mailing list does not match the address stated in the Petition.
2. Verified declaration by petitioner to include Attachment 7, facts upon which the petitioner bases the allegation of community property, including date and length of marriage, whether spouses were legally separated or living apart, when real property was purchased and by whom, and whether community property funds were used to purchase real property
3. Verified declaration with revised attachment 7a, to include percentage of ownership in the property to be determined as having passed to the surviving spouse.
4. Authority for court to pass decedent's ½ interest in community property to him individually. Will authorizes distribution to trustee of trust.
5. Proposed Order

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14. 1:30 PM	MSP20-01148 THE COLA TRUST COURT TRIAL HEARING STATUS ON MEDIATION RE: AMENDED PETITION FOR REMOVAL OF TRUSTEE, ETC FILED 08/31/21 BY STEPHEN COLA, MELANIE COLA/ DAY 3 Need appearances to report status
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